

2024-01443810	Plaintiff Niguel Summit Community Association sues Defendants Pacific Island Village III Homeowners Association Inc. and Monarch Summit I Homeowners Association for: 1. Negligence 2. Negligence per se 3. Trespass 4. Nuisance 5. Breach of governing documents Plaintiff has dismissed the fifth cause of action. (ROA 46.) <u>Negligence</u> Plaintiff alleges that defendants Pacific Island and Monarch Summit negligently maintained, repaired, and replaced property, including but not limited to improvements and drainage (“PI and MS Common Areas”) that is adjacent to Plaintiff’s Common Areas. (Compl., ¶¶5, 15.) Plaintiff then alleges that as a result of the work done by Defendants on their own property, Plaintiff’s Common Area was inundated with water, mud, and debris. (FAC, ¶16.) A complaint for damages for negligent injury to person or property must allege: (1) defendant's legal duty of care toward plaintiff; (2) defendant's breach of duty, i.e., the negligent act or omission; (3) injury to plaintiff as a result of the breach, i.e., proximate or legal cause; and (4) damage to plaintiff. (See 4 Witkin, Cal. Procedure. (<i>Pultz v. Holgerson</i> (1986) 184 Cal.App.3d 1110, 1116–1117.) A property owner may use his or her land for any lawful purpose, provided the owner exercises ordinary care and skill to prevent injury to adjacent owners. (<i>Haehlen v. Wilson</i> (1936) 11 Cal. App. 2d 437, 441.) Defendant argues that there are insufficient allegations as to specifically what it did to cause Plaintiff’s Common Area to be flooded with water and debris. The Court disagrees. The Complaint alleges that “Defendants knew or should have known that if the drainage course controlled by Defendants was altered and not maintained, the drainage course, including the ditches, drains, and culverts would not function and the water would overtop, overflow, flood and discharge onto Plaintiff’s Common Area, and further, said water, mud, and debris
---------------	---

would enter upon and damage Plaintiff's Common Area as alleged herein." (Compl., ¶15.)

An allegation of negligent management and maintenance of property is sufficient for pleading purposes. (*Pultz, supra*, 1116–1117.)

Thus, the allegations are sufficient. The Demurrer to the first cause of action is overruled.

Negligence Per Se

The doctrine of negligence per se is *not* a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence. ([*Millard v. Biosources, Inc.*, \(2007\) 156 Cal.App.4th 1338](#), fn. 2.)

Further, Plaintiff does not actually allege any statute or law that was violated.

Plaintiff's Complaint alleges that (Complaint, ¶ 22) there are "laws, statutes, and regulations which require Defendants to take action prevent discharge of water and water runoff from property they have the duty to maintain, repair or replace," but the Complaint makes no mention of the specific statutes or regulations that creates a statutory duty.

Thus, the Demurrer to the second cause of action is sustained.

Trespass

The Complaint alleges that water overflowed and flooded Plaintiff's Common Area from Defendant's property. (Compl. ¶28.) The Complaint further alleges that "the acts and omissions of Defendants as alleged create a threat of future flooding, overtopping, overflow, and discharge of water, mud, and debris so as to obstruct Plaintiff's use of Plaintiff's Common Area." (Compl., ¶29.)

" 'Trespass is an unlawful interference with possession of property.' The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (See CACI No. 2000.)" (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261–262, internal citation omitted.)

Defendant argues that the allegations are insufficient to show *how* Defendant trespassed. But the Complaint says that Defendant negligently allowed water intrusion. This is sufficient to state a claim.

The Demurrer to the third cause of action is overruled.

Nuisance

Plaintiff alleges that Defendant failed to properly control, maintain, repair, or replace water flow from its property, which lead to overflow, overtopping, flooding and discharge of water, mud, and debris, causing damage to Plaintiff's property. (Compl., ¶30.)

"[T]he essence of a private nuisance is its interference with the use and enjoyment of land. The activity in issue must 'disturb or prevent the comfortable enjoyment of property,' such as smoke from an asphalt mixing plant, noise and odors from the operation of a refreshment stand, or the noise and vibration of machinery." (*Oliver v. AT&T Wireless Services* (1999) 76 Cal.App.4th 521, 534, internal citations omitted; CACI 2021.)

Defendant argues that the Complaint does not specify how Plaintiff's property was damaged nor what repairs, if any, Plaintiff made to remedy the condition after Defendants allegedly failed to repair the condition. But this level of detail is not required at the pleadings stage and is property left to discovery.

The Demurrer to the fourth cause of action is overruled.

A. Motion to Strike Attorney's Fees

The Court grants Defendant Monarch Summit I Homeowners Association's Motion to strike attorney's fees alleged in Plaintiff Niguel Summit Community Association's Complaint.

Code of Civil Procedure § 1021 codifies the "American rule" that each party must bear the expense of its own attorney's fees. 14 Cal.5th at 417. (*Java Oil Ltd. v Sullivan* (2008) 168 Cal.App.4th 1178, 1189–1192 (California courts may enforce foreign money judgments that automatically award attorney's fees to successful litigant, e.g., under "English rule" that generally requires loser to pay winner's attorney's fees; these awards are not contrary to California public policy).

		Here, Plaintiff alleges no agreement with Defendant that provides for attorney's fees nor does Plaintiff cite to a statute that could provide for attorney's fees to the prevailing party. Thus, requests for attorney's fees are stricken. <u>Leave to Amend</u> The Court grants Plaintiff 15 days leave to amend the second cause of action and the claim for attorney's fees. Moving Defendant is ordered to serve notice. Case Management Conference Continued to August 10, 2026 at 9:00 a.m.
10	Nystul vs. Airborne Systems North America of CA, Inc. 2024-01374494	Motion for Summary Judgment and/or Adjudication Motion for Summary Judgment, or in the Alternative, Summary Adjudication Defendants Airborne Systems North America of CA, Inc. (Airborne Systems") and TransDigm Inc. ("TransDigm") (collectively, "Defendants") seek summary judgment on the Complaint filed by Plaintiff Michelle Nystul ("Plaintiff"). Defendants alternatively seek summary adjudication on eight issues. As an initial matter, the Court notes the parties did not comply with CCP section 1013b. No objections were made to service. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. The Court declines to consider Defendants' reply evidence, supplemental reply evidence, reply separate statement, and supplemental reply separate statement. (Code Civ. Proc., § 437c, subd. (b)(4).) <u>General legal authority</u> In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to